

Birendra Kumar Arya v. Paschimanchal Vidyut Vitran Nigam Ltd.

High Court of Judicature at Allahabad · Division Bench · 28 September 2011 · Writ-C No. 56821 of 2011 · **Writ disposed of at admission; liberty to apply under clause 7.10.**

HEADNOTE

At admission, the Division Bench declined to interfere with the licensee's 17 August 2011 disconnection order and left the consumer to the Consumer Redressal Forum under clause 7.10 of the U.P. Electricity Supply Code, 2005.

FACTUAL SUMMARY

The petitioner's electricity connection was disconnected for using supply for agricultural purposes and running a cold storage. An earlier writ (Writ-C No. 40167 of 2011) was disposed of on 26 July 2011 directing the licensee to consider his cause; the authority then passed an order on 17 August 2011. He challenged that order as illegal and de hors the Supply Code, 2005. Counsel for the petitioner did not appear despite repeated calls.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::7.10

consumer-redressal-forum

HOLDING

The Court disposed of the writ at admission without interfering with the Electricity Department's stand on disconnection, recording that the order would not affect the petitioner's right to apply to the Consumer Redressal Forum under clause 7.10 of the U.P. Electricity Supply Code, 2005. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE 17 AUGUST 2011 ORDER WAS ILLEGAL OR DEHORS THE ELECTRICITY SUPPLY CODE, 2005 AND THE ELECTRICITY ACT, 2003

¶ 1